

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

OWEN SERRA,

Petitioner

VS.

CINDY KANEGAI,

Respondent

Case Number: FMS-21-387367

Hearing Date: September 3, 2026

Hearing Time: 9:00 AM

Department: 404

Presiding: AI MORI

REQUEST FOR ORDER AN ORDER CLARIFYING 04/06/2025 FOAH, MINOR CHILD TO UNDERGO A TIER 2 ASSESMENT OR A BFA, AND AN ORDER STAYING ANY INTERIM CHANGES IN CUSTODY; REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME), CHILD SUPPORT, MISCELLANEOUS ORDERS RELATED TO MINOR CHILD

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9:00 AM on 9/3/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Owen Serra (Father) and Respondent Cindy Kanegai (Mother) have one minor child, Esme (DOB 7/6/2020, age 6). Father is represented by Kaye Moser Hierbaum Ford LLP. Mother is represented by attorney Charles Young.
- 2) On 12/29/2021, a Domestic Violence Restraining Order (DVRO) After Hearing was entered protecting Mother against Father. It expired on 12/15/2022 and was not renewed.

- 1 3) After a 12/15/2022 hearing, Judge Evangelista found that Father had rebutted the Family Code
2 section 3044 presumption, denied Father's request for a 2-2-5 parenting time schedule, and
3 implemented a 2-2-3 schedule. (See Findings and Order After Hearing (FOAH) filed
4 12/15/2022.)
- 5 4) In early 2023, the parties stipulated to the appointment of a child custody evaluator and a custody
6 evaluation occurred.
- 7 5) On 1/17/2024, a Stipulation and Order was filed containing the following orders: (a) joint legal
8 and physical custody; (b) Mother may immediately relocate with Esme to the LaMorinda area; (c)
9 Father shall have parenting time with Esme from Wednesday pickup at school or 4PM until
10 7:30PM, or until 9AM on Thursday if Father is staying in LaMorinda, and alternating weekends
11 from Friday pickup at school or 4PM until Sunday at 3PM, or until drop off at school on Monday
12 morning or 9AM if Father is staying in LaMorinda; (d) shared holidays and school breaks and 2
13 weeks of summer vacation for each party; (e) the goal is for Father to have a 40% timeshare; (f)
14 the custody agreement is a final custody agreement under *Montenegro v. Diaz* (2001) 26 Cal.4th
15 249 "such that a change in circumstance is required prior to a modification"; and (g) "Esme shall
16 continue to be in therapy with Zoe Strauss. If she is willing to do so, Zoe Strauss shall become
17 Esme's court appointed therapist. If Ms. Strauss is unable then another child therapist will
18 continue therapy with Esme. Her work with Esme needs to be privileged, except that Ms. Strauss
19 shall be permitted to speak to the Parties' parenting coordinator about how Esme is doing and/or
20 any concerns in therapy, and the Parenting Coordinator can then consider those updates in issuing
21 recommendations to the Court subject to the powers set forth in his/her appointment order.
22 Neither parent may stop or pause therapy unless directed by Zoe Strauss or ordered by the Court.
23 Except for updates which may be provided by the Parenting Coordinator, the court may not ask
24 for reports from Ms. Strauss except for status reports as to her continued need for therapy and
25 how much therapy and whether the parents are cooperating in bringing her to therapy. The cost of
26 this therapy shall be divided pursuant to the current add-on order of 70% to Respondent, and 30%
27 to Petitioner."
- 28 6) On 5/21/2024, a Stipulation and Order was filed which contains the following orders: (a)
29 commencing 2/1/2024, Mother shall pay Father guideline child support of \$411 per month. The

1 guideline calculation contains the following inputs: Father's wages of \$9,583 per month and
2 Mother's wages of \$22,360 per month; (b) commencing 1/1/2025, the parties shall exchange W2s
3 and year end paystubs by February 1 and engage in an annual true-up regarding additional bonus
4 child support in accordance with the Two-Way Smith-Ostler Bonus Table; (c) Father shall pay
5 30% and Mother shall pay 70% of the following child support add-ons: childcare costs related to
6 employment or to reasonable necessary education or training for employment skills; reasonable
7 uninsured healthcare costs; and preschool tuition, costs, and fees; and (4) during fall, winter,
8 spring, and summer, each party will pick one extracurricular activity in which to enroll Esme and
9 each party will pay 100% of the cost of the activity they choose.

- 10 7) On 10/14/2024, the parties agreed to appoint attorney David Donner as a Parenting Coordinator
11 for a period of 12 months.
- 12 8) On 4/3/2025 (FOAH filed 4/7/2025), Judge Costin modified the therapy provisions set forth in
13 the 1/17/2024 Stipulation and Order as follows: "Mother may enroll Esme in therapy with
14 Adriana Taranta (or another therapist of Mother's choosing if Taranta is not available). Ms.
15 Taranta shall determine how often it is necessary to meet with Esme – i.e. once a week, twice a
16 month, etc. Mother shall be solely responsible for all costs associated with therapy, and (unless
17 the parties agree in writing otherwise). Mother must ensure that all sessions occur during her
18 custodial time. If the therapist recommends in writing to the parents that therapy is no longer
19 necessary, then therapy shall cease. Otherwise Mother shall (until otherwise agreed by the parties
20 or ordered by the Court) have temporary sole decision-making authority over Esme's
21 participation in therapy. This grant of decision-making is conditioned on Mother complying with
22 the terms noted above (i.e. that Mother be responsible for all costs associated with therapy and
23 that sessions occur during Mother's custodial time unless the parties agree or the Court orders
24 otherwise). The Court reserves jurisdiction to modify all orders related to therapy."

25 **Father's 3/2/2026 Request for Order**

- 26 9) On 3/2/2026, Father filed a request stating he relocated to Moraga after the parties entered into
27 their 1/17/2024 Stipulation, and seeking the following orders: (a) equal parenting time under a 2-
28 2-5 schedule; (b) commencing Summer 2027, each party to have 2 weeks of summer vacation
29 (consecutive or not) with Esme; (c) any 3-day weekend Monday holiday or Monday teacher

workday to be assigned to the parent with the custodial weekend immediately preceding the Monday holiday; (d) confirmation of the 4/27/2025 FOAH that caregivers may drop off and pick up Esme from school and any scheduled activities or care arrangements; (e) when extracurricular activities selected by each party conflict in time and cannot reasonably be rescheduled to avoid overlap, the parties to alternate which activity Esme attends by academic term or comparable session; (f) each party to provide current contact information (home address, phone number, and email) to the other party in case of emergency and to ensure direct access to Esme's records and portals; (g) all custodial exchanges that do not occur at school shall occur curbside at the receiving party's house; (h) if the Court modifies timeshare, guideline child support to be modified to reflect the change.

10) On 3/2/2026, Father filed an Income and Expense Declaration in which he states he is 40 years old and earns \$10,995 per month as a senior loan officer for Community Vision Capital and Consulting.

11) On 5/19/2026, Father filed a Supplemental Declaration stating, among other things, that after he filed his 3/2/2026 request, he was offered and accepted a position with Nonprofit Finance Fund in a business development role. Father states his new position will require travel and evening event attendance which will frequently occur, at a minimum monthly, in the latter half of the work week. Father states that if his parenting time is on Wednesdays and/or Thursdays, there will be occasions he will miss regular parenting time due to work-related travel.

12) On 5/19/2026, Father filed an Income and Expense Declaration. Father states that he will now be earning \$11,049 per month as a Director of Loan Origination for Nonprofit Finance Fund.

13) On 5/19/2026, Father filed declarations from 3 third parties, Grace Mitchell Tada (Father's friend), Nancy Owens (Father's mother), and Annie Burgess (Father's neighbor), in support of his requested orders.

14) On 5/29/2026, Mother filed Written Objections and Motion to Strike the declarations of Nancy Owens and Grace Mitchell Tada based on hearsay and relevance.

15) On 5/29/2026, Mother filed a response in which she states that Father has not articulated a change in circumstance that warrants a modification under *Marriage of Montenegro*. She asks the Court to: (a) deny Father's request for a 2-2-5 schedule; (b) maintain the current schedule; (c) deny

1 Father's request that if the Court modifies the timeshare, guideline child support shall be
2 modified to reflect the change; (d) in the alternative, a Brief Focused Assessment (BFA) by Dr.
3 Victoria Coad who conducted the prior child custody evaluation and an evidentiary hearing (Evid.
4 Code, § 217) to include testimony from the parties, Dr. Coad, the child's pediatrician, therapists,
5 and any other witnesses to be identified before trial.

6 16) On 5/29/2026, Mother filed an Income and Expense Declaration. Mother states she is 48 years
7 old and works as a physician for the Permanente Medical Group. She states she is on maternity
8 leave through 7/1/2026.

9 17) On 6/4/2026, Mother filed a Statement of Support Calculations which includes a proposed
10 XSpouse with inputs for the parties' new income (Father's monthly wages of \$11,103 and
11 Mother's monthly wages of \$23,341) and a 50% timeshare (without prejudice to Mother's
12 position that it is not in Esme's best interest to move to an equal timeshare at this time). The new
13 calculation shows monthly base child support of \$890 payable by Mother.

14 18) On 6/4/2026, Father filed a Reply Declaration and Reply Memorandum of Points and Authorities.

15 19) On 7/20/2026, Mother filed a Supplemental Declaration in Opposition to Father's Request to
16 Modify Custody and Visitation.

17 20) On 7/21/2026, Father filed a Reply declaration to Mother's 7/20/2026 Supplemental Declaration.

18 21) On 7/22/2026, Mother filed an ex parte request asking the Court to continue the hearing on
19 Father's 3/2/2026 request to 9/3/2026, to join the hearing on Mother's 7/6/2026 request. Father
20 opposed the request, and the Court denied the request. Thereafter, on 7/28/2026 (see FOAH filed
21 7/30/2026), the Court found "it is in Esme's best interest for the Court to receive information
22 from Esme's therapist before issuing a ruling on Father's request for a change in his parenting
23 time"; the Court continued the matter to 9/3/2026 to permit Esme's therapist to lodge and serve
24 on both parties a declaration . . . as the therapist deems appropriate and "necessary and in Esme's
25 best interest." (See 4/6/2025 order.)"

26 22) On 8/14/2026, Mother filed an Income and Expense Declaration.

27 23) On 8/14/2026, Father filed an Income and Expense Declaration. Father states that last month he
28 earned \$11,103 in wages.
29

1 24) On 8/21/2026, Mother filed a Supplemental Declaration in Opposition to Father's 3/2/2026
2 request.

3 25) On 8/21/2026, Father filed a Responsive Declaration to Declaration of Adriana Taranta wherein
4 Father reiterates his request for a 2-2-5 schedule.

5 26) On 8/21/2026, Mother filed a Notice of Errata stating that she incorrectly calculated her average
6 monthly income in her Income and Expense Declaration filed 8/14/2026. She states her average
7 monthly income is \$20,988 and attached an Amended Income and Expense Declaration.

8 27) On 8/21/2026, Mother filed a Statement of Support Calculations which includes a proposed
9 XSpouse which includes inputs for the parties' new income (Father's monthly wages of \$11,103
10 and Mother's monthly wages of \$20,988), a 50% timeshare (without prejudice to Mother's
11 position that it is not in Esme's best interest to move to an equal timeshare at this time), and a
12 hardship deduction for Mother's new child. The new calculation shows monthly base child
13 support of \$890 payable by Mother.

14 28) On 8/24/2026, Father filed a Statement of Support Calculations. On 8/26/2026, Father filed a
15 Notice of Errata Regarding Statement of Support Calculations and attached an Amended
16 Statement of Support Calculations. Father provides 4 proposed XSpouse calculations which
17 include as inputs the parties' new income (Father's monthly wages of \$11,103 and Mother's
18 monthly wages of \$23,914) and a 50% timeshare. 2 of the Xspouse calculations provide a 50%
19 hardship deduction for Mother and 2 of the XSpouse calculations do not provide a hardship
20 deduction for Mother. 2 of the Xspouse calculations provide for Father claiming Esme as a
21 dependent and 2 of the XSpouse calculations provide for Mother claiming Esme as a dependent.
22 The 4 XSpouse calculations show monthly base child support of \$873, \$970, \$923, and \$1,023.

23 29) The Court notes the parties disagree regarding how to calculate Mother's monthly wages. Mother
24 contends the Court should take an average of her year-to-date earnings as of 7/31/2026 and divide
25 it by 7 months. Father contends the Court should look at Mother's average monthly wages for the
26 past 12 months. The parties also disagree regarding whether Mother should be granted a hardship
27 deduction for her new child. The Court notes that Family Code section 4070 states: "If a parent is
28 experiencing extreme financial hardship due to justifiable expenses resulting from the
29 circumstances enumerated in Section 4071, on the request of a party, the court may allow the

1 income deductions under Section 4059 that may be necessary to accommodate those
2 circumstances.”

3 **Mother’s 7/6/2026 Request for Order**

4 30) On 7/6/2026, Mother filed a request seeking: (a) an order for the 4/3/2025 FOAH to be clarified
5 to state that in the absence of a current PC appointment, Ms. Taranta may provide, at her
6 discretion, updates to the Court about how Esme is doing in therapy, any concerns she has from
7 therapy, and that the Court may consider those in hearing custody requests by the Parties,
8 including Father’s 3/2/2026 request; (b) an order that Esme undergo a Tier 2 review with Family
9 Court Services or a Brief Focused Assessment with Dr. Coad and that said professional may
10 speak directly to Ms. Taranta or in the alternative that Ms. Taranta be permitted to speak directly
11 to the Court regarding her impressions and recommendations for Father’s 3/2/2026 Request for
12 Order; (c) an order for a status conference date to receive the report from Family Court Services
13 or the BFA and determine whether an evidentiary hearing is necessary to include testimony from
14 the parties, professional used to conduct either the BFA or the Tier 2 assessment, and Ms. Taranta
15 if appropriate at that time; and (d) an order staying any interim changes in custody and setting an
16 evidentiary hearing regarding Ms. Taranta’s impressions and recommendations.

17 31) On 8/21/2026, Father filed a response asking the Court to “leave the protections of the April 2025
18 order in place and deny [Mother’s] request for broader permanent prospective orders involving
19 Esme’s therapy in future custody proceedings.” Father also filed a Memorandum of Points and
20 Authorities.

21 32) On 8/27/2026, Mother filed a Reply Declaration reiterating her original requests.

22 **B. Findings and Order**

- 23 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
24 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
25 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
26 child is the United States.
- 27 2) **The parties are ordered to appear in person or via Zoom Video at 9am on 9/3/2026 in**
28 **Department 404.**
- 29